

1 ENGROSSED HOUSE
2 BILL NO. 4260

By: Hays, Deck, and Adams of
the House

3 and

4 Frix of the Senate
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7 An Act relating to workers' compensation; creating
8 claims for certain medical episodes for certain first
9 responders; providing framework for claims; providing
10 for rebuttable presumption; providing for a sunset;
11 providing for codification; and providing an
effective date.

12 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

13 SECTION 1. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 127 of Title 85A, unless there
15 is created a duplication in numbering, reads as follows:

16 ACUTE MYOCARDIAL INFARCTION OR STROKE.

17 A. A firefighter, peace officer, or emergency medical
18 technician who suffers an acute myocardial infarction or stroke
19 resulting in disability or death is presumed to have suffered the
20 disability or death during the course and scope of employment as a
21 firefighter, peace officer, or emergency medical technician if:

22 1. While on duty, the firefighter, peace officer, or emergency
23 medical technician:
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1 a. was engaged in a situation that involved stressful or
2 strenuous physical activity involving fire
3 suppression, rescue, hazardous material response,
4 emergency medical services, law enforcement, or other
5 emergency response activity, or

6 b. participated in a training exercise that involved
7 stressful or strenuous physical activity, and

8 2. The acute myocardial infarction or stroke occurred not later
9 than eight (8) hours after the end of a shift in which the
10 firefighter, peace officer, or emergency medical technician was
11 engaged in the activity described in paragraph 1 of this subsection.

12 B. There shall be a rebuttable presumption that the medical
13 events described in subsection A of this section arose out of the
14 employment performed by the person and occurred while the employee
15 was acting within the scope of employment. This presumption may be
16 overcome by clear and convincing evidence.

17 C. For purposes of this section, "stressful or strenuous
18 physical activity" does not include clerical, administrative, or
19 nonmanual activities.

20 D. For purposes of this section, "firefighter", "peace
21 officer", and "emergency medical technician" mean only those
22 individuals employed by the state, a county, a municipality, or any
23 other political subdivision of this state.

E. This section shall cease to have full force and effect in law on November 1, 2031, to allow for a full legislative review of the fiscal impact.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 24th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the _____ day of _____, 2026.

Presiding Officer of the Senate